



2007-03533

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Requested By: LAWYERS TITLE-HOGALES

SUZANNE SAINZ, RECORDER

SANTA CRUZ COUNTY, ARIZONA

03-12-2007 02:35 PM Recording Fee \$15.00

WHEN RECORDED MAIL TO:

**Law Offices of Esser Bradley & Wallace
1785 W. Highway 89A, Suite 2-1
Sedona, AZ 86336**

1583290-A14

**DO NOT REMOVE THIS COVER SHEET. IT IS NOW PART OF THE RECORDED
DOCUMENT.**

DOCUMENT TO BE RECORDED:

DEED OF TRUST AND ASSIGNMENT OF RENTS

1583290-AY

DEED OF TRUST AND ASSIGNMENT OF RENTS

Date:

MARCH 9th, 2007

TRUSTOR:

GLOBAL COMMUNITY COMMUNICATIONS ALLIANCE,
an Arizona Non-Profit Corporation

whose address is:

P. O. Box 3946
Sedona, AZ 86340

TRUSTEE(S):

LAW OFFICES OF ESSER BRADLEY & WALLACE
1785 W. Highway 89A, Suite 2-I
Sedona, AZ 86336

whose address is:

BENEFICIARIES:

MICHAEL and JUDITH STEINHARDT
650 Madison Avenue, New York, NY 10022

whose address is:

Property located in Santa Cruz County, Arizona, described as follows:

Lots 28 and 29, of Tubac Plaza, a subdivision of Santa Cruz County, Arizona, according to the map or plat thereof of record in the office of the County Recorder of Santa Cruz County, Arizona, in Book 2 of Maps and Plats, at page 34 thereof.

WITNESSETH: That Trustor irrevocably grants and conveys to Trustee in Trust, with Power of Sale, the above-described real property together with the leases, rents, issues, profits or income thereof (all of which are hereinafter called "property income"), SUBJECT, HOWEVER, to the right, power and authority hereinafter given to and conferred upon Beneficiary to collect and apply such property income; AND SUBJECT TO existing taxes, assessments, liens, encumbrances, covenants, conditions, restrictions, right-of-way, and easements of record.

FOR THE PURPOSE OF SECURING (a) performance of each agreement of Trustor herein contained; (b) payment of the indebtedness evidenced by promissory note or notes of even date herewith, and extension or renewal thereof, in the principal sum of \$1,077,500.00 executed by Trustor in favor of Beneficiaries or order; (c) payment of additional sums and interest thereon which may hereafter be loaned to Trustor, or his successors or assigns, when evidenced by a promissory note or notes reciting that they are secured by this Deed of Trust.

The following terms and conditions are incorporated herein by reference.

The undersigned Trustor requests that a copy of any notice of default and any notice of sale hereunder be mailed to him at the address set forth above, or as later provided to the Trustee by Trustor.

Signature of Trustor

GLOBAL COMMUNITY COMMUNICATIONS
ALLIANCE, an Arizona Non-Profit
Corporation

By: Anthony J DeLevin
Its Pastor & President

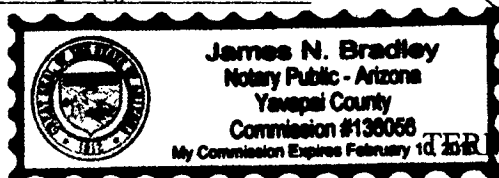
STATE OF ARIZONA)
> ss.
County of Yavapai)

This instrument was acknowledged before me this 11 day of MARCH, 2007
by ANTHONY J DELEVIN, PRESIDENT (title), on behalf of Global
Community Communications Alliance, an Arizona non-profit corporation.

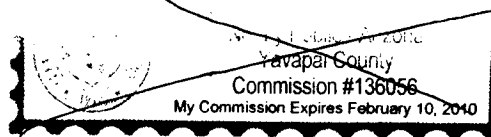
IN WITNESS WHEREOF I have set my hand and official seal.

My Commission Expires:

2-10-10



Notary Public



TERMS AND CONDITIONS

TO PROTECT THE SECURITY OF THIS DEED OF TRUST, TRUSTOR AGREES:

1. To keep said property in good condition and repair; not to remove or demolish any building thereon; to complete or restore promptly in good and workmanlike manner any building which may be constructed, damages or destroyed thereon, and to pay when due all claims for labor performed and materials furnished therefor; to comply with all laws affecting said property or requiring any alterations or improvements to be made thereon; not to commit or permit waste thereof; not to commit, suffer or permit any act upon said property in violation of law; and do all other acts which from the character or use of said property may be reasonably necessary, the specific enumerations herein not excluding the general.

2. To provide, maintain and deliver to Beneficiary fire insurance satisfactory to and with loss payable to Beneficiary. The amount collected under any fire or other insurance policy may be applied by Beneficiary upon any indebtedness secured hereby and in such order as Beneficiary may determine, or at option of Beneficiary the entire amount so collected or any part thereof may be released to Trustor. Such application or release shall not cure or waive any default or Notice of Trustee's Sale hereunder or invalidate any act done pursuant to such notice.

3. To appear in and defend any action or proceeding purporting to affect the security hereof, or the rights or powers of Beneficiary or Trustee; and to pay all costs and expenses of Beneficiary and Trustee, including cost of evidence of title and attorney fees in a reasonable sum,

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in any such action or proceeding in which Beneficiary or Trustee may appear or be named, and in any suit brought by Beneficiary to foreclose this Deed of Trust.

4. To pay: Before delinquent, all taxes and assessments affecting said property; when due, all encumbrances, charges and liens, with interest, on said property or any part thereof, which appear to be prior or superior hereto; all costs, fees and expenses of this Trust, including, without limitation, the generality of the foregoing, the fees of Trustee for issuance of any Deed of Partial Release and Partial Reconveyance or Deed of Release and Full Reconveyance, and all lawful charges, costs and expenses in the event of reinstatement or following default in, this Deed of Trust or the obligations secured hereby.

Should Trustor fail to make any payment or do any act as herein provided, then Beneficiary or Trustee, but without obligation so to do, and without notice to or demand upon Trustor, and without releasing Trustor from any obligation hereof, may: make or do the same in such manner and to such extent as either may deem necessary to protect the security hereof, Beneficiary or Trustee being authorized to enter upon said property for such purposes; appear in and defend any action or proceeding purporting to affect the security hereof or the rights or powers of Beneficiary or Trustee; pay, purchase, contest or compromise any encumbrance, charge or lien which in the judgment of either appears to be prior or superior hereto; and, in exercising any such powers, pay necessary expenses, employ counsel, and pay reasonable attorney fees.

5. To pay immediately and without demand all sums expended by Beneficiary or Trustee pursuant to the provisions hereof, together with interest from date of expenditure at the same rate as is provided for in the note secured by this Deed of Trust or at the highest legal rate, whichever be the greater rate. Any amount so paid by Beneficiary or Trustee shall become a part of the debt secured by this Deed of Trust and a lien on said premises or immediately due and payable at option of Beneficiary or Trustee.

IT IS MUTUALLY AGREED:

6. That any award of damages in connection with any condemnation or any such taking, or for injury to the property by reason of public use, or for damages for private trespass of injury thereto, is assigned and shall be paid to Beneficiary as further security for all obligations secured hereby (reserving unto the Trustor, however, the right to sue therefor and the ownership thereof subject to this Deed of Trust), and upon receipt of such monies, Beneficiary may hold the same in the same manner and with the same effect as above provided for disposition of proceeds of fire or other insurances.

7. That time is of the essence of this Deed of Trust, and that by accepting payment of any sums secured hereby after its due date, Beneficiary does not waive his right either to require prompt payment when due of all other sums so secured, or to declare default for failure so to pay. This Deed of Trust secures Maker's obligation to pay a certain promissory note of even date. In the event Maker sells the secured real property, that note is due and payable immediately.

8. That at any time or from time to time, and without notice, upon written request of Beneficiary and presentation of this Deed of Trust and said note(s) for endorsement, and without liability therefor, and without affecting the personal liability of any person for payment of the indebtedness secured hereby, and without affecting the security hereof for the full amount secured hereby on all property remaining subject hereto, and without the necessity that any sum representing the value or any portion thereof of the property affected by the Trustee's actions be credited on the indebtedness, the Trustee may: (a) Release and reconvey all or any part of said property; (b) consent to the making and recording, or either, of any map or plat of the property or any part thereof; (c) join in granting any easement thereon; (d) join in or consent to any extension agreement or any agreement subordinating the lien, encumbrance or charge hereof.



9. That upon written request of Beneficiary stating that all sums secured hereby have been paid, and upon surrender of this Deed of Trust and said note(s) to Trustee for cancellation and retention, and upon payment of its fees, Trustee shall release and reconvey, without covenant or warranty, express or implied, the property then held hereunder. The recitals in such reconveyance of any matters or facts shall be conclusive proof of the truthfulness thereof. The Grantee in such reconveyance may be described as "the person or persons legally entitled thereto."

10. That while this Deed of Trust secures said Note, Trustor shall only list the property with a licensed realtor pre-approved by the Beneficiary.

11. That as additional security, Trustor(s) hereby give to and confer upon Beneficiary the right, power, and authority, during the continuance of this Trust, to collect the property income, reserving the Trustor(s) the right, prior to any default by Trustor(s) in payment of any indebtedness secured hereby or in performance of any agreement hereunder, to collect and retain such property income as it becomes due and payable. Upon any such default, Beneficiary may at any time, without notice, either in person, by agent, or by a receiver to be appointed by a court, and without regard to the adequacy of any security for the indebtedness hereby secured, enter upon and take possession of said property or any part thereof, in his own name, sue for or otherwise collect such property income, including that past due and unpaid, and apply the same, less costs and expenses of operation and collection, including reasonable attorney fees, upon any indebtedness secured hereby, and in such order as Beneficiary may determine. The entering upon and taking possession of said property, the collection of such property income, and the application thereof as aforesaid, shall not cure or waive any default or Notice of Trustee's Sale hereunder or invalidate any act done pursuant to such notice.

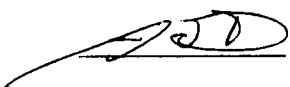
12. That upon default by Trustor(s) in the payment of any indebtedness secured hereby, or in performance of any agreement hereunder, Beneficiary may declare all sums secured hereby immediately due and payable by delivery to Trustee of written notice thereof, setting forth the nature thereof, and of election to cause to be sold said property under this Deed of Trust. Beneficiary also shall deposit with Trustee this Deed of Trust, said note(s), and all documents evidencing expenditures secured hereby.

Trustee shall record and give Notice of Trustee's Sale in a manner required by law, and after the lapse of such time as may then be required by law, Trustee shall sell, in the manner required by law, said property at public auction at the time and place fixed by it in said Notice of Trustee's Sale to the highest bidder in cash in lawful money of the United States, payable as required by law. Trustee may postpone or continue the sale by giving Notice of Postponement or Continuance by public declaration at the time and place last appointed for the sale. Trustee shall deliver to such purchaser its deed conveying the property so sold, but without any covenant or warranty, express or implied. Any persons, including Trustor, Trustee or Beneficiary may purchase at such sale.

After deducting all costs, fees and expenses of Trustee and of this Trust, including cost of evidence of title connection with sale and reasonable attorney fees, Trustee shall apply the proceeds of sale to payment of: All sums then secured hereby and all other sums due under the terms hereof, with accrued interest; and the remainder if any, to the person or persons legally entitled thereto, or as provided in ARS § 33-812. To the extent permitted by law, an action may be maintained by Beneficiary to recover a deficiency judgment for any balance due hereunder.

In the alternative to foreclosure by Trustee's Sale, the Beneficiary may foreclose by judicial proceedings, and in such event, the election to declare the unpaid balance immediately due and payable may be made in the Complaint. In such judicial proceedings, Beneficiary shall be entitled to reasonable attorney fees, costs of foreclosure report and all sums advanced, with interest, as provided under Paragraph 4 and 5 herein.

13. That Beneficiary may appoint a successor trustee in the manner prescribed by law.



A successor trustee herein shall, without conveyance from the predecessor Trustee, succeed to all the predecessor's title, estate, rights, powers and duties. Trustee may resign by mailing or delivering notice thereof to Beneficiary and Trustor(s).

14. That this Deed of Trust applies to, inures to the benefit of, and binds all parties hereto, their heirs, legatees, devisees, administrators, executors, successors and assigns. The term Beneficiary shall mean the owner and holder of the note(s) secured hereby, whether or not named as Beneficiary herein. In this Deed of Trust whenever the context so requires, the masculine gender includes the feminine and neuter, and the singular number includes the plural.

15. That Trustee accepts this Trust when this Deed of Trust, duly executed and acknowledged is made public record as provided by law. Trustee is not obligated to notify any party hereto of pending sale under any other Deed of Trust or of any action or proceeding in which Trustor(s), Beneficiary or Trustee shall be a party unless brought by Trustee.

A handwritten signature in black ink, appearing to be "E. D.", written over a horizontal line.